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අති විශේෂ EXTRAORDINARY

අංක 1930/5 – 2015 අගෝස්තු 31 වැනි සඳුදා – 2015.08.31

No. 1930/5 – MONDAY, AUGUST 31, 2015

(Published by Authority)

PART I: SECTION (I) – GENERAL

Government Notifications

My No.: IR/10/25/2012.

THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON (1956 REVISED EDITION)

Revocation of Order under Section 4(1)

WHEREAS by Order made under Section 4(1) of the Industrial Disputes Act Chapter 131 of the Legislative Enactments of Ceylon (Revised Edition 1956) as amended by Acts Nos. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968 dated 17.12.2012 and published in the *Gazette* of the Democratic Socialist Republic of Sri Lanka Extraordinary No. 1793/8 dated 16.01.2013 the Industrial Dispute in respect of the matter specified in the statement of the Commissioner of Labour dated 03.12.2012.

Mr. A. P. K. Weeraratne, Kudagama, Dombemada of the one part

and

National Water Supply and Drainage Board, Head Office, Galle Road, Ratmalana of the other part

was referred to Mr. Sarath Liyanage for settlement by arbitration.

AND whereas it is now deemed expedient that the said Order be revoked, I, S. B. Nawinna, Minister of Labour do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 17.12.2012.

S. B. NAWINNA,
Minister of Labour.

Colombo,
20th August, 2015.

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PART I: SEC. (I) - GAZETTE EXTRAORDINARY OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA - 31.08.2015

My No.: IR/10/25/2012.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4(1)

WHEREAS AN Industrial Dispute in respect of the matter specified in the statement of the Commissioner of Labour which accompanies this order exists between,

Mr. A. P. K. Weeraratne, Kudagama, Dombemada of the one part,

and

National Water Supply and Drainage Board, Head Office, Galle Road, Ratmalana of the other part.

NOW THEREFORE I, S. B. Nawinna, Minister of Labour do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes-Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. Palitha Weerasekara, No. 33/2, Nimala Maria Mawatha, Hendala, Wattala to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

S. B. NAWINNA,
Minister of Labour.

Colombo,
20th August, 2015.

My No.: IR/10/25/2012.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mr. A. P. K. Weeraratne, Kudagama, Dombemada of the one part,

and

National Water Supply and Drainage Board, Head Office, Galle Road, Ratmalana of the other part.

STATEMENT OF MATTER IN DISPUTE

The matters in dispute between the aforesaid parties are

Whether Mr. A. P. K. Weeraratne who had served the National Water Supply and Drainage Board, as a Clerk has been caused unjust by,

- (1) Not receiving the promotions, salary increments or gratuity in accordance with the permanent appointment letter dated 29.08.2001 and casual (temporary) appointment letter dated 10.08.2000 as well as the recruitment and promotion procedures,
- (2) Being deprived of the salaries from 11.07.2007 to 10.11.2010 by letter of re-instatement dated 08.11.2010 and all the other entitlements for that period and
- (3) Issuing the order of vacation of post dated 08.10.2007 even though he had informed the Board of his sickness and forwarded medical certificates,

and if so, to what relief he is entitled.

M. D. C. AMARATHUNGE,
Commissioner of Labour.

Dated at the Office of the Commissioner of Labour,
Colombo, this 05th day of August, 2015.

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